

# New York State Sexual Harassment Prevention

## Case Studies

For Managers, Supervisors, and Employees

### Introduction

Following are some case studies that may help explain the type of behaviors that could constitute sexual harassment. These examples describe inappropriate behaviors in the workplace that will be dealt with by corrective action, including disciplinary action.

Remember, it's up to EVERYONE to report inappropriate behavior in the workplace.

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## Case Studies

For Managers, Supervisors, and Employees

### Case Study 1: Not Taking “No” for an Answer

Li Yan's co-worker, Ralph, has just been through a divorce. He drops comments on occasion that he is lonely and needs to find a new girlfriend. Li Yan and Ralph have been friendly in the past and have lunch together in local restaurants on many occasions.

Ralph asks Li Yan to go on a date with him – dinner and a movie. Li Yan likes Ralph and agrees to go out with him. She enjoys her date with Ralph, but decides that a relationship is not a good idea. She thanks Ralph for a nice time, but explains that she does not want to have a relationship with him.

Ralph waits two weeks and then starts pressuring Li Yan for more dates. She refuses, but Ralph does not stop. He keeps asking her to go out with him.

**Question 1:** ☐ True or ☐ False?

When Ralph first asked Li Yan for a date, this was sexual harassment.

**Question 2:** ☐ True or ☐ False?

Li Yan cannot complain of sexual harassment because she went on a date with Ralph.

Li Yan complains to her supervisor, and the supervisor (as required) reports her complaint to the person designated by her employer to receive complaints. Ralph is questioned about his behavior and he apologizes. He is instructed by the designated person to stop.

Ralph stops for a while, but then starts leaving little gifts for Li Yan on her desk with accompanying notes. The notes are not overtly offensive, but Ralph's behavior is starting to make Li Yan nervous, as she is afraid he may start stalking her.

**Question 3:** ☐ True or ☐ False?

Ralph's subsequent behavior with the gifts and notes is not sexual harassment because he has stopped asking Li Yan for dates, as instructed. He is just being nice to Li Yan because he likes her.

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## Case Studies

For Managers, Supervisors, and Employees

### Case Study 2: The Boss With a Bad Attitude

Sharon transfers to a new location with her employer. Her new supervisor, Paul, is friendly and helps her get familiar with her new job duties. After a few days, when no one else is around, Paul comes over to Sharon's work area to chat.

Paul talks about what he did last night, which was to go to a strip club. Sharon is shocked that Paul would bring up such a topic in the workplace and says nothing in response. Paul continues talking and says that all the women in the office are so unattractive that he needs to get out and "see some hot chicks" once in a while.

He tells Sharon that he's glad she joined the staff because, unlike the others, she is "easy on the eyes." Sharon feels very offended and demeaned that she and the other women in her workplace are being evaluated on their looks by their supervisor.

**Question 1:** ☐ True or ☐ False?  
Because Paul did not tell Sharon that she is unattractive, he has not harassed her.

**Question 2:** ☐ True or ☐ False?  
By bringing up his visit to a strip club, Paul is engaging in inappropriate workplace behavior.

**Question 3:** ☐ True or ☐ False?  
Paul should be instructed to stop making these type of comments, but this is not a serious matter.

# New York State Sexual Harassment Prevention

## Case Studies

For Managers, Supervisors, and Employees

### Case Study 3: No Job for a Woman?

Carla works as a licensed heavy equipment operator. Some of her male co-workers think it's fun to tease her. Carla often hears comments like "Watch out, here she comes – that crazy woman driver!" in a joking manner. In addition, someone keeps putting a handmade sign on the only port-a-potty at the worksite that says "Men Only."

**Question 1:** ☐ True or ☐ False?

Women in traditionally male jobs should expect teasing and should not take the joking comments too seriously.

**Question 2:** ☐ True or ☐ False?

Carla cannot complain because the site supervisor sometimes joins in with the joking behavior, so she has nowhere to go.

Some of Carla's other co-workers are strongly opposed to her presence in the traditionally all-male profession. These co-workers have sometimes said things to her like, "You're taking a job away from a man who deserves it," or "You should be home with your kids," and "What kind of a mother are you?" Also, someone scratched the word "bitch" on Carla's toolbox.

**Question 3:** ☐ True or ☐ False?

These behaviors, while rude, are not sexual harassment because they are not sexual in nature.

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Carla complains about the jokes and other behaviors, and an investigation is conducted. It cannot be determined who defaced Carla's toolbox. Her co-workers are told to stop their behavior or face disciplinary charges. The supervisor speaks with Carla and tells her to come to him immediately if she has any further problems. Carla then finds that someone has urinated in her toolbox.

**Question 4:** ☐ True or ☐ False?

There is nothing Carla can do because she can't prove who vandalized her toolbox.

# New York State Sexual Harassment Prevention

## Case Studies

For Managers, Supervisors, and Employees

### Case Study 4: Too Close For Comfort

Keisha has noticed that her new boss, Sarah, leans extremely close to her when they are going over the reports that she prepares. She touches her hand or shoulder frequently as they discuss work. Keisha tries to move away from her in these situations, but she doesn't seem to get the message.

**Question 1:** ☐ True or ☐ False?

Keisha should just ignore Sarah's behavior, as it is not sufficiently severe or pervasive.

Before Keisha gets around to complaining, Sarah brushes up against her back in the conference room before a meeting. She is now getting really annoyed but still puts off doing anything about it. Later Sarah "traps" her in her office after they finish discussing work by standing between her and the door of her small office. Keisha doesn't know what to do, so she moves past her to get out. As she does so, Sarah runs her hand over her breast.

**Question 2:** ☐ True or ☐ False?

Sarah's brushing up against Keisha in the conference room could just be inadvertent and does not give Keisha any additional grounds to complain about Sarah.

**Question 3:** ☐ True or ☐ False?

Sarah touching Keisha's breast is inappropriate, but is probably not unlawful harassment because it only happened once.

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## Case Studies

For Managers, Supervisors, and Employees

### Case Study 5: A Distasteful Trade

*The following scenario will explain many aspects of quid pro quo sexual harassment.*

Tatiana is hoping for a promotion to a position that she knows will become vacant soon. She knows that her boss, David, will be involved in deciding who will be promoted. She tells David that she will be applying for the position, and that she is very interested in receiving the promotion. David says, "We'll see. There will be a lot of others interested in the position."

One week later, Tatiana and David travel together on state business, including an overnight hotel stay. Over dinner, David tells Tatiana that he hopes he will be able to promote her, because he has always really enjoyed working with her. He tells her that some other candidates "look better on paper," but that she is the one he wants. He tells her that he can "pull some strings" to get her into the job, and Tatiana thanks David. Later David suggests that they go to his hotel room for "drinks and some relaxation." Tatiana declines David's "offer."

**Question 1:** ☐ True or ☐ False?  
David's behavior could be considered harassment of Tatiana.

After they return from the trip, Tatiana asks David if he knows when the job will be posted so that she can apply. He says that he is not sure, but there is still time for her to "make it worth his while" to pull strings for her. He then asks, "How about going out to dinner this Friday and then coming over to my place?"

**Question 2:** ☐ True or ☐ False?  
David engaged in quid pro quo harassment.

Tatiana, who really wants the position, decides to go out with David. Almost every Friday they go out at David's insistence and engage in sexual activity. Tatiana does not want to be in a relationship with David and is only going out with him because she believes he will otherwise block her promotion.

**Question 3:** ☐ True or ☐ False?  
Tatiana cannot complain of harassment because she voluntarily engaged in sexual activity with David.

# New York State Sexual Harassment Prevention

## Case Studies

For Managers, Supervisors, and Employees

### Case Study 5: A Distasteful Trade – continued

Tatiana receives the promotion.

**Question 4:** ☐ True or ☐ False?

Tatiana cannot complain of harassment because she got the job, so there is no discrimination against her.

Tatiana breaks off the sexual activities with David. He then gives her a bad evaluation, and she is removed from her new position at the end of the probationary period and returns to her old job.

**Question 5:** ☐ True or ☐ False?

It's now "too late" for Tatiana to complain. Losing a place of favor due to the breakup of the voluntary relationship does not create a claim for sexual harassment.

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## Case Studies

For Managers, Supervisors, and Employees

### Case Study 6: An Issue About Appearances

Leonard works as a clerk typist for a large employer. He likes to wear jewelry and his attire frequently includes earrings and necklaces. His boss, Margaret, thinks it's "weird" that, as a man, Leonard wears jewelry and wants to be a clerical worker. She frequently makes sarcastic comments to him about his appearance and refers to him "jokingly" as her office boy. Leonard, who hopes to develop his career in the area of customer relations, applies for an open promotional position that would involve working in a "front desk" area, where he would interact with the public. Margaret tells Leonard that if he wants that job, he had better look "more normal" or else wait for a promotion to mailroom supervisor.

**Question 1:** ☐ True or ☐ False?

Leonard's boss is correct to tell him wearing jewelry is inappropriate for a customer service position.

Margaret is also "suspicious" that Leonard is gay, which she says she "doesn't mind," but she thinks Leonard is "secretive." She starts asking him questions about his private life, such as "Are you married?" "Do you have a partner?" "Do you have kids?" Leonard tries to respond politely "No" to all her questions, but is becoming annoyed. Margaret starts gossiping with Leonard's co-workers about his supposed sexual orientation.

**Question 2:** ☐ True or ☐ False?

Leonard is the recipient of harassment on the basis of sex and sexual orientation.



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## Case Studies

For Managers, Supervisors, and Employees

### Case Study 6: An Issue About Appearances – continued

Leonard decides that he is not going to get a fair chance at the promotion under these circumstances, and he complains to the employer's designee about Margaret's behavior. The designee does an investigation and tells Margaret that Leonard's jewelry is not in violation of any workplace rule, that she is to consider him for the position without regard for his gender, and that she must stop making harassing comments, asking Leonard intrusive questions, and gossiping about his personal life. Margaret stops her comments,

questions, and gossiping, but she then recommends a woman be promoted to the open position. The woman promoted has much less experience than Leonard and lacks his two-year degree in customer relations from a community college.

**Question 3:** ☐ True or ☐ False?

Leonard has likely been the victim of discrimination on the basis of sex, sexual orientation, and/or retaliation.

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